



Security Council

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Letter dated 16 August 2022 from the Secretary-General addressed to the President of the Security Council

I have the privilege to address you with respect to the Special Tribunal for Lebanon.

Following the issuance of the appeal sentencing judgment in the *Ayyash et al.* case on 16 June 2022, the Special Tribunal has commenced the performance of its residual functions as at 1 July 2022, namely the management and preservation of its records and archives, including the digital and physical evidence of the Special Tribunal, assistance to national authorities and responses to requests for information and the protection and support of victims and witnesses. In its residual phase, the Special Tribunal is a small institution with a limited number of staff. The Registrar is the only senior full-time official, and the judges, the Prosecutor and the Head of the Defence Office are remunerated on a pro rata basis for work actually performed.

In the light of the limited scope of the residual functions of the Special Tribunal, it has been agreed with the Government of Lebanon that the residual phase of the Tribunal will be completed at the end of next year, which would entail a final mandate renewal after the current mandate expires at the end of February 2023. The Tribunal will therefore close as at 31 December 2023.

The Management Committee of the Special Tribunal has approved a budget in the amount of \$3 million for 2023, which will include funding for the performance of the residual functions of the Tribunal, as well as for activities required for drawdown and closure.

Pursuant to article 5, paragraph 1, of the Agreement between the United Nations and the Lebanese Republic on the Establishment of the Special Tribunal annexed to Security Council resolution [1757 \(2007\)](#), 51 per cent of the expenses of the Tribunal shall be borne by voluntary contributions from States, and 49 per cent by the Government of Lebanon.

As you may be aware, owing to the uncertain financial situation of the Special Tribunal, further to consultations with the Government of Lebanon and the members of the Security Council, I have previously sought a subvention from the General Assembly for 2021 and 2022 for the Tribunal. While the Government of Lebanon remains committed to the Tribunal, owing to the continuing economic challenges in the country, the Government is currently not in a position to confirm whether it will be able to contribute to the budget of the Tribunal for 2023. In addition, while senior officials of the Tribunal have continued to fundraise in 2022, no Member State has pledged any funding as of yet for 2023.



Pursuant to article 5, paragraph 2, of the annex to Security Council resolution [1757 \(2007\)](#), should voluntary contributions be insufficient for the Special Tribunal to implement its mandate, the Secretary-General and the Council shall explore alternate means of financing the Tribunal. In order to enable the Tribunal to perform the aforementioned residual functions and to close at the end of 2023, further to consultations with the Government of Lebanon and the members of the Council, I wish to inform the Council of my intention to seek a subvention from the General Assembly for the Tribunal in the amount of approximately \$3 million for 2023.

I would be grateful if you could bring the present letter to the attention of the members of the Security Council at the earliest opportunity.

(Signed) António **Guterres**
